

25NWCV01151 25NWCV01151

County: los-angeles

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Case Number: 25NWCV01151 Hearing Date: August 25, 2026 Dept: L

Plaintiff's Motion for Leave

to File the First Amended Complaint is DENIED without prejudice.

Plaintiff to give notice.

Background

This is a motor vehicle

negligence action regarding an accident that occurred on November 22, 2024. On March 28, 2025, Plaintiff Alfredo Donald Jr. Sanchez ("Plaintiff") filed this action against Defendant The Grandfather Trucking, Inc. ("Grandfather Trucking") and Does 1 to 50. The Complaint alleges that Does 1 to 50 were acting within the scope and agency of their employment/relationship with Grandfather Trucking when the collision occurred. The Complaint alleges the following causes of action: 1) Negligence, 2) Negligent Entrustment, and 3) Negligent Hiring, Supervision & Retention.

On May 20, 2025, Grandfather Trucking filed an Answer.

On September 29, 2025, Plaintiff named Defendant Rafael Zarate as Doe 1.

On November 25, 2025, Defendant Zarate filed an Answer.

Plaintiff now moves for leave to amend to file the First Amended Complaint (FAC).

On August 18, 2026, Defendants

Grandfather Trucking and Zarate (hereinafter, "Defendants") filed an opposition. No reply has been filed as of August 24, 2026.

Legal Standard

Pursuant to Code of Civil

Procedure section 473, subdivision (a)(1), "[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Amendment may be allowed at any time before or after commencement of trial. (Code Civ. Proc., § 576.) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego, (2010) 184 Cal.App.4th 1422, 1428 (internal citations omitted).)

"If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend...." (Morgan v. Sup. Ct. (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (Solit v. Tokai Bank, Ltd. New York Branch, (1999) 68 Cal.App.4th 1435, 1448.)

Discussion

Plaintiff now moves to add allegations supporting a prayer for punitive damages.

Procedural Requirements of California Rules of Court,
Rule 3.1324(b)

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments. (Cal. Rules of Court, rule 3.1324(a).) The motion must also state what allegations are proposed to be deleted or added, by page, paragraph, and line number. (Ibid.) Finally, a separate supporting declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered,

and the reason the request for amendment was not made earlier must also accompany the motion. (Cal. Rules of Court, rule 3.134(b).) ٤٤

Plaintiff's motion suffers from various procedural defects. Firstly, the Motion fails to attach a copy of the proposed amended pleading. Exhibit 1 is entitled "Proposed Amendments to the Complaint." (Tomkinson Decl., ¶ 11, Exh. 1.) However, as noted by Defendants, the document merely summarizes the proposed amendments. Nowhere in the Motion does Plaintiff state "what allegations are proposed to be deleted or added, by page, paragraph, and line number."

Further, as argued by Defendants, the Court finds that Plaintiff does not explain why the request for amendment was not made earlier. Plaintiff's counsel declares that amendment is sought to incorporate facts uncovered during discovery, and that such information was not available until late 2025. (Tomkinson Decl., ¶¶ 3, 10.) Specifically, Plaintiff asserts that such new evidence supports the claim that "Defendant Zarate knew about the collision and that Defendant Grandfather Trucking ratified the egregious misconduct, for punitive damages." (Tomkinson Decl., ¶ 3.) Plaintiff relies on 1) Grandfather Trucking's form interrogatory responses served on Grandfather Trucking, and 2) Defendant Zarate's deposition testimony from December 4, 2025. (Tomkinson Decl., ¶¶ 8-9.)

However, upon closer inspection, the Court finds that the cited evidence does not support Plaintiff's punitive damages allegations. The form interrogatory responses indicate that Defendant Zarate attempted to swerve around Plaintiff's vehicle. (Tomkinson Decl., ¶ 8.) The deposition testimony indicates that Defendant Zarate provided a contradicting accounting of events—specifically, that Zarate told an interviewing police officer that he could not recollect ever seeing Plaintiff's vehicle or experiencing an accident. (Tomkinson Decl., ¶ 9.) It is unclear how such "newly discovered" evidence supports the punitive damages allegations. The Court notes that Plaintiff does not attach copies of the discovery responses or the deposition testimony to the Motion.

Further, Plaintiff cites to Plaintiff's responses to written discovery requests in alleging that the accident was a hit-and-run. (See Mot., 6:11-20.) The Court presumes that such theory was known to Plaintiff at the time he filed the Complaint.

The bottom line is that it is unclear why the allegations in support of the punitive damages claim were not within Plaintiff's knowledge at the time he filed the Complaint. Neither does Plaintiff explain why he waited 8 months since the Plaintiff's deposition to file this Motion.

The Court denies the Motion based on such procedural deficiencies.

Accordingly, Plaintiff's Motion for Leave to File the First Amended Complaint is denied without prejudice.